

ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH MULTAN.
JUDICIAL DEPARTMENT

Muhammad Zafar. Versus D. G. Pakistan Post, Islamabad, etc.

Sr. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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Brief facts for the disposal of this writ petition are that the petitioner was employed as L.D.C. (BPS-05) in the Livestock Products Marketing & Grading Department with effect from 31.05.2005. The petitioner was initially placed at Serial No. 2 in the seniority list prepared by the Circle Office of the Postmaster General Southern Punjab, Multan. Later on, upon reorganization of the department, the petitioner alongwith other employees was transferred to the Pakistan Post Department at Multan on deputation basis with effect from 01.07.2011. In January 2013, the petitioner was placed at Sr. No.9 instead of Sr. No. 2 in the second gradation (seniority list) which compelled the petitioner to prefer representation against the said list, which was forwarded to the Directorate General Pakistan Post, Islamabad alongwith comments of the department on 26.09.2014. The office of the Director General, Pakistan Post, Islamabad, directed vide letter dated 19.12.2014 that seniority of the petitioner be fixed in accordance

with Establishment Division Instruction OM No. 15(5)/2011-MSW-IV dated 17.09.2013. The respondent No.1 rejected the said representation/appeal of the petitioner on the recommendation of the Committee constituted for the determination of seniority. Through this writ petition, the petitioner has challenged the aforesaid actions of the respondent-authority with the following prayer:-

“In the light of the above facts and law, it is earnestly prayed that this instant petition may very graciously be accepted and the respondent No.1 may be directed to hold the result of the employees from BS-7 to BS-9 till the final disposal of the writ petition.

Any other relief or direction expedient in the interest of justice may also be issued.”

2. Learned counsel for the petitioner submits that in terms of Rule 4 of the Civil Servants Seniority Rules, 1993, seniority in service, cadre or post to which a civil servant is appointed by transfer, shall take effect from the date of regular appointment to the service, cadre or post. Accordingly, the respondent No.1 intimated the respondent No.2 that seniority of the petitioner be fixed in accordance with Establishment Division Instruction dated 17.09.2013. Further clarification of the department in this connection was also issued but the respondents are not acting in accordance with the above rules and instructions issued by the department itself.

3. Learned standing counsel for Pakistan submits that the matter in hand relates to the condition of service for which the learned Federal Service Tribunal has jurisdiction to entertain the case due to bar imposed

under Article 212 of the Constitution of the Islamic Republic of Pakistan, 1973.

4. Arguments heard.

5. Primary grievance of the petitioner had arisen out of the question of his seniority. The petitioner is aggrieved of the seniority list prepared by the respondents, submitting that the same is in violation of Rule 4 of the Civil Servants Seniority Rules, 1993, because it adversely affects the terms and conditions of the service and the same is in violation of the law. It is well settled law that question of seniority relates to terms and conditions of service of a civil servant, as provided under Civil Servants Act, 1973, therefore, this Court is not supposed to entertain and adjudicate such dispute due to bar contained under Article 212 of the Constitution of Islamic Republic of Pakistan, 1973. In the case titled Deedar Hussain Jakhrani and others v. Federation of Pakistan through Secretary Establishment and others (2011 PLC (C.S) 203), the Hon'ble Division Bench of Sindh High Court, while discussing the question of seniority, has held as under:-

“12. We will first discuss question of maintainability of the petition. It was strenuously argued by the respondents and D.A.-G. that essentially the petition involves a question relating to seniority and therefore it was their contention that jurisdiction of this Court is barred under Article 212 of the Constitution of the Islamic Republic of Pakistan. There is no manner of doubt that seniority is always one of the terms and conditions of employment. It is not disputed by any of the parties that both the petitioners and the answering respondents are in the service of Pakistan as well as are Civil Servant as defined in section 2(b) of the Civil Servants Act, 1973. The law is so well-settled on the point that

seniority is one of the terms and conditions of service and therefore is within exclusive jurisdiction of Service Tribunal that it does not need any authority.”

On the question of seniority, reference can also be made to judgments reported as Khadim Hussain v. Dr. Farzana Chaudhry and others (2001 PLC (C.S.) 1239) and Zafar Masood and 4 others v. Chief Secretary, Government of Balochistan Civil Secretariat, Quetta and 6 others (2010 PLC (C.S) 563). In Khadim Hussain’s case supra, this court has held as under:

“4. Having heard the learned counsel for the private parties and the learned Standing Counsel as well the departmental representatives, I am clear in my mind that the dispute of seniority raised by the petitioner in the present petition relates to terms and conditions of service of a civil servant, as provided under Civil Servants Act, 1973, therefore, this Court is not supposed to entertain and adjudicate such disputes due to bar contained under Article 212 of the Constitution.”

In the case of Zafar Masood supra, while discussing the question of seniority list, the Hon’ble Division Bench of High Court Balochistan, Quetta, has observed as under:-

“7.....Since the private respondents were aggrieved from the list issued by the Board, therefore, they have availed the proper remedy by way of filing representation/appeal to the competent authority. No doubt, we cannot look into the outcome of any order passed by competent authority, but according to law against any seniority list, the remedy available to aggrieved person is a representation/appeal to the competent authority, which the private respondents have availed. The competent authority has passed an order, reviewing the seniority list, against

which the law has provided a remedy by way of filing an appeal before the Tribunal.

8. Since the impugned corrigendum issued by the competent authority pertains to terms and conditions of service, therefore, in view of bar contained in Article 212 of the Constitution of Islamic Republic of Pakistan, 1973, we have no jurisdiction to entertain the petition against said order and in this behalf, reliance has been placed on a judgment-reported in 2007 SCMR 54.”

6. Admittedly, the petitioner is a Civil Servant and, therefore, he cannot approach this Court under Article 199 of the Constitution for redressal of his grievance, which pertains to the terms and conditions of his service in view of the bar created under Article 212(2) of the Constitution. Such grievances of a Civil Servant fall within the domain of the Federal Service Tribunal as mandated by the Constitution. This Court, therefore, is not competent to adjudicate the issue raised in the instant petition. Reference in this regard can be made to Ali Azhar Khan Baloch and others v. Province of Sindh and others (2015 SCMR 456) and National Assembly Secretariat through Secretary v. Manzoor Ahmed and others (2015 SCMR 253). Regarding the bar contained in Article 212 of the Constitution and ouster of jurisdiction of this Court in respect of matters related to terms and conditions of service, including seniority, Hon’ble Supreme Court of Pakistan has made the following observations in the case of Ali Azhar Khan supra:-

“149. Article 212 of the Constitution ousts the jurisdiction of High Courts and civil Courts in respect of the matters pertaining to terms and conditions of civil servants. In other words, the provisions of Article 212 do

not confer a concurrent jurisdiction to civil Courts, High Courts and Tribunals. The ouster contemplated under the said Article is a Constitutional command, and, therefore, of necessity restricts the jurisdiction of civil courts and High Courts on the subject, which squarely falls within the exclusive domain of Tribunals.

150. The High Court of Sindh has completely overlooked the intent and spirit of the Constitutional provisions relating to the terms and conditions of service, while entertaining Civil Suits and constitution petitions filed by the civil servants, which are explicitly barred by Article 212. The expression 'Terms and Conditions' includes transfer, posting, absorption, seniority and eligibility to promotion but excludes fitness or otherwise of a person, to be appointed to or hold a particular post or to be promoted to a higher post or grade as provided under section 4(b) of the Sindh Service Tribunals Act, 1973. Surprisingly, it has been ignored that it is, by now, a settled principle of law that the civil and writ jurisdictions would not lie in respect of the suits or petitions filed with regard to the terms and conditions of Civil Servants, and yet some of the learned Judges of High Court of Sindh have erroneously exercised both civil and writ jurisdictions with regard to the terms and conditions of civil servants.

151. We, for the aforesaid reasons, conclude that the exercise of jurisdiction by way of suit and Constitution petition filed by a civil Servant with regard to his terms and conditions of service is violative of Articles 175, 212 and 240 and the law.”

7. The instant constitutional petition, in the circumstances, is not maintainable, however the petitioner may, if so advised, approach the departmental authorities or invoke the jurisdiction of Federal Service Tribunal. In view of the aforesaid, without commenting

upon the merits of the case, this petition is **dismissed in limine.**

(Muhammad Sajid Mehmood Sethi)
Judge

Approved for reporting.

A.H.S.

before whom, the original jurisdiction has been conferred under Article 212 of the Constitution of the Islamic Republic of Pakistan, 1973, to adjudicate upon the grievance of the petitioner in respect of the terms and conditions of service. Reference in this respect can be made to the following case law:-

- iv. Miss Zubaida Khatoon v. Mrs. Tehmina Sajid Sheikh and others (2011 SCMR 265)
- v. Muhammad Tahir Rasool v. Punjab Public Service Commission through Secretary and another (2011 PLC (C.S) 334)
- vi. Provincial Police Officer (I.G.P) Peshawar and another v. Farid Ullah Khan (2013 PLC (C.S) 1413)
- vii. Ms. Anyesha Bashir Wani and others v. Government of Pakistan and others (2012 PLC (C.S) 31)
- viii. Imdad Magsi and others v. Karachi Water and Sewerage Board and others (PLD 2002 Supreme Court 728)
- ix. Muhammad Riaz v. Secretary Ministry of Kashmir Affairs and Northern Areas, Government of Pakistan and others (2002 PLC (C.S) 306)
- x. Shah Nawaz Khan Kundi through Legal Heirs v. Government of N.W.F.P. through Chief Secretary, Peshawar and 2 others (1997 PLC (C.S) 892)
- xi. Muhammad Sharif Memon and 2 others v. Government of Sindh through Chief Secretary, Sindh Secretariat, Karachi and 2 others (1996 PLC (C.S) 1174)
- xii. Muhammad Ismail v. Province of the Punjab (1981 PLC (C.S) 115)